

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.7952-Q of 2022

Omer Nazeer versus The State etc.

J U D G M E N T

Date of hearing	24.03.2022
The Petitioner by	Mr. Amir Sikandar Ranjha, Advocate.
The State by	Mr. Amjad Ali Ansari, Assistant Advocate General with M. Aslam S.I.
The Respondent No.3 by	Mr. Imdad Ali Nekokara, Advocate.

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MUHAMMAD AMJAD RAFIQ, J. Through this Constitutional Petition, the petitioner being Regional Manager based at Regional Office Lahore of the **CMPak Limited (the “CMPak” or “Zong”)**, assailed the vires of FIR No.432 dated 27.11.2021 registered under sections 419 & 420 PPC at Police Station Kaleki Mandi, Hafizabad on the ground that subject matter of FIR requires investigation and adjudication by Pakistan Telecommunication Authority (hereinafter called as PTA) only and in such like cases FIR is barred under such law, thus, prayed that FIR is to be quashed as false owing to mistake of law.

2. Briefly the facts of the case are that one Noor Abbas was allotted a golden number 0311-1111311 by Zong Company in year 2013 who sold out said number to one Mst. Irshad Bibi on 24.02.2015. Mst. Irshad Bibi further sold the same to one Idrees Noor on 25.01.2016. Shamraiz son of Noor Abbas, the first owner, on the death of Noor Abbas got blocked the Subscriber Identity Module (hereinafter called as SIM) and succeeded to transfer it in his name from Gujranwala Region of Zong Company. When it

came to the notice through application of last owner namely Idrees Noor, Zong Company started inquiring the matter. The matter was under inquiry when an application was filed before the PTA. PTA issued a show cause notice to Zong Company and the SIM was reverted in the name of Idrees Noor. Thereafter, Shamraiz son of Noor Abbas filed an application before *Wafaqi Mohtasib* which was contested and the learned *Wafaqi Mohtasib* vide order dated 22.06,2021 referred the matter to the Chairman PTA with the recommendations to finalize the matter and to redress the grievance of the complainant (Shamraiz) as per Rules; upon which by virtue of order dated 24.12.2021 PTA passed the following order:

"It is to inform that since CMPak Limited (the "licensee") has taken appropriate action against the concerned employees and has reverted the ownership of the MSISDN in the name of Idrees Noor. In addition, the licensee has also issued advisory to all the franchisees, as well as CSCs regarding compliance of Rules, Regulations, SOPs and directives of PTA. Thus, in such circumstances, SCN is hereby disposed with the warning to the licensee not to repeat the same in future."

but in the meantime said Shamraiz succeeded to get lodged FIR No.432/21 impugned herein, alleging fraud and misrepresentation in transfer of SIM and the petitioner alongwith others were nominated as accused in said FIR.

3. Learned counsel for the petitioner has contended that the local police has no jurisdiction to register the FIR as the whole mechanism relating to complaint in such like matters is regulated under The Pakistan Telecommunication (Re-organization) Act, 1996. He while referring to the definition clause of said Act has referred section 2(a), 2(j) & 2(q) defining "Authority" "Licencee" & "Regulation" stated that Section 4 of Act *ibid* envisaged Functions of Authority and quoted Section 4 (a), (c) & (f). Clause (f) particularly states as under:-

"investigate and adjudicate on complaints and other claims made against licensees arising out of alleged contraventions of the provisions of this Act, the rules made and licences issued thereunder and taken action accordingly."

Further states that the regulations which were framed under the said Act are titled as "Telecom Consumers Protection Regulations,

2009". Such regulations contain the definition of "Consumer" and "Operator" which are regulation 3 (vi) & (vii). He highlights Regulation 11 (Nature of Complaints) to throw light on the sort of complaints to be dealt under such regulation which are as under:-

- i. *Misuse of Service*
- ii. *Quality of Service*
- iii. *Illegal Practices*
- iv. *Poor Services*
- v. *Provision of Service*
- vi. *Misleading Statements*
- vii. *Non-Provision of Service*
- viii. *Mobile Number Probability related complaints*

Further highlights the Complaint Handling Mechanism which is reflected in Regulation 12 to 15 and finally states that if the grievances of a consumer could not be redressed by licensee concerned then the PTA is final Authority to investigate and adjudicate upon the matter. He quoted section 31 (5) which says that cognizance of the offence shall only be taken on a complaint made by PTA which is reproduced as under:-

"No court shall take cognizance of any offence punishable under this Act except on a complaint in writing by an officer authorized by the Authority or the Board."

4. Learned counsel for the petitioner adds that local police has no jurisdiction, if somebody is affected from the decision of PTA he can file an appeal before the High Court as mentioned in Section 7 of The Pakistan Telecommunication (Re-organization) Act, 1996 and by virtue of Section 58 of the said Act such law has been given an overriding effect. So, as a corollary the complainant of FIR at the most could file an appeal before this Court; registration of FIR was barred. He has placed reliance on judgments reported as "Director General, FIA and others vs. Kamran Iqbal and others" (2016 SCMR 447), "Rana Shahid Ahmad Khan vs. Tanveer Ahmed and others" (2011 SCMR 1937), "Muhammad Akram vs. The State" (PLD 2001 Karachi 112), "Haji Tooti Bashir vs. The State" (1993 P.Cr.L.J. 1448), "Liaqat Islam vs. The State" (2011 YLR 2280), "Pakistan Mobile Communication LTD. Vs. Judge District Consumer Court, Gujranwala and 3 others" (PLD 2015 Lahore

204) and also relied upon order dated **18.01.2022** passed in W.P. No.8852 of 202 by this Court.

5. On the other hand, learned counsel for the complainant states that application filed by the complainant has been decided by PTA one sidedly and he has not been given proper opportunity, however, he could not controvert the legal position as stated by the learned counsel for the petitioner.

6. Heard. Record perused.

7. The SIM, in question, was primarily issued in the name of Noor Abbas which was activated in the year 2013, later it was transferred to one Irshad Bibi on 24.02.2015, from her the same was transferred in the name of Idrees Noor on 25.01.2016 but on the death of first owner, his son Shamraiz Abbas (complainant of FIR) approached Gujranwala CSC claiming the change of ownership of SIM from the name of his father i.e. Noor Abbas as fraudulent; consequently, succeeded to convert the ownership in his name on 13.02.2020 on the direction of one Ahmed Hassan Zafar, Senior Manager CSC on the basis of death certificate and CNIC. In July, 2020 a complaint was received from Idrees Noor through his representative qua unilateral conversion of SIM; internal inquiry was conducted and conversion was reverted to the ownership of Idrees Noor immediately, which was done on 13.11.2020 to protect consumer's interest, an action was also taken against Ahmed Hassan Zafar, Senior Manager CSC and he was fired. All these facts are mentioned in letter dated 07.07.2021 addressed to Director (Enforcement Wireless I) Pakistan Telecommunication Authority PTA Headquarters, F-5/1, Islamabad, Pakistan, which was issued by the counsel for CMPAK. Application filed by Shamraiz against such reversion was attended by *Wafaqi Mohtasib* who after hearing both the parties directed Pakistan Telecommunication Authority to redress grievance of the petitioner and disposed of the matter on 27.07.2021. In pursuance whereof Shamraiz (complainant of FIR) and Zong Company representative were directed to attend the inquiry and it was done by virtue of circular dated 28.10.2021 and

after hearing, the Pakistan Telecommunication Authority vide letter dated 23.12.2021 concluded the matter, action taken by the CMPAK Board (licencee) for conversion of ownership was regulated and show cause notice issued to the company was taken back and passed the order dated 24.12.2021 as cited in paragraph No.2 of this judgment. If for the sake of arguments, it is considered that Shamraiz complainant of FIR was not heard before passing of the above order he could have filed an application in this respect or an appeal as mentioned in section 7 of The Pakistan Telecommunication (Re-organization) Act, 1996, but it was not done rather complainant proceeded to lodge the FIR in question.

8. There is a complete and comprehensive mechanism given in The Pakistan Telecommunication (Re-organization) Act, 1996 which has been followed while processing the case of the respondent/complainant of FIR. Change of ownership of SIM is regulated under **Rule 12 of Subscriber Antecedents Verification Regulations, 2015** which authorizes the operators to change the ownership of SIMs if any breach of such regulation is found; such breach is punishable under Section 31(1)(a) of The Pakistan Telecommunication (Re-organization) Act, 1996 and under Section 31(6) of said Act, if any such violation is committed by a Company, every Executive Director, Chief Executive, Principal Officer and Secretary of such Company can be prosecuted in accordance with the provision of Code of Criminal Procedure, 1898. As per Section 31(2) of The Pakistan Telecommunication (Re-organization) Act, 1996, every offence specified in sub-section (1) shall be punishable with imprisonment which may extend to two years, or with fine which may extend to ten million rupees, or with both. Section 31(5) of the Act *ibid* states that no Court shall take cognizance of any offence punishable under this Act except on a complaint in writing by an officer authorized by the Authority or the Board. It is trite that there is a difference between registration of FIR and taking cognizance; yet FIR could only be registered in cognizable offence and The Pakistan Telecommunication (Re-organization) Act, 1996

does not carry any provision which could label any such act as cognizable offence. Therefore, by virtue of application of provision of Code of Criminal Procedure, 1898, I have gone into recitation of section 5 and second schedule of code of criminal procedure supra under the head “Offences against other laws”. Section 5 of Code of Criminal Procedure, 1898 is reproduced as under:-

“5. **Trial of Offences under Penal Code-**(1) All offences under the Pakistan Penal Code shall be investigated, inquired into, tried, and otherwise dealt with according to the provisions hereinafter contained.

(2) **Trial of offences against other laws.**--All offences under any other law shall be investigated, inquired into, tried, and otherwise dealt with according to the same provisions, but subject to any enactment for the time being in force regulating the manner or place of investigating, inquiring into, trying or otherwise dealing with such offence.”

It is clear from the reading of above Section that if the procedure is not given in any special law; then one prescribed under Code of Criminal Procedure, 1898 shall be followed. According to second schedule if an offence is punishable with imprisonment for one year and upwards but less than three years, the offence shall be non-cognizable, therefore, on this score FIR for offences under PTA cannot be registered. PTA being special law has an overriding effect as per Section 58 of said Act. It is to be given space and alleged corresponding sections in Pakistan Penal Code cannot be stretched for registration of FIR, therefore, very registration of FIR was false owing to mistake of law and this Court in its constitutional jurisdiction can quash the same. Reliance is placed on judgments reported as “DIRECTOR GENERAL, FIA and others vs. KAMRAN IQBAL and others” (2016 SCMR 447) and “SHAH JEHAN KHETRAN vs. Sh. MUREED HUSSAIN and others” (2005 SCMR 306).

9. For what has been discussed above, this writ petition is **allowed** and FIR No.432 dated 27.11.2021 registered under Sections 419 & 420 PPC at Police Station Kaleki Mandi, Hafizabad is hereby **quashed**. However, the respondent is at liberty to approach Pakistan Telecommunication Authority for redress of his

grievance if any or may file an appeal under Section 7 of The Pakistan Telecommunication (Re-organization) Act, 1996 against the decision of PTA dated 24.12.2021.

(Muhammad Amjad Rafiq)
Judge

Approved for reporting.

Judge

*Sadheer Ahmad**